



CHAPTER lxxxiv.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Bedford Caerphilly Epping (Rural) Guildford Leek (Rural) Morpeth Richmond (Surrey) and Rotherham (two).

A.D. 1910.

[3rd August 1910.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1910.

Short title.

A.D. 1910.

SCHEDULE.

BOROUGH OF BEDFORD.

*Bedford
Order.*

*Provisional Order to enable the Urban District Council for the
Borough of Bedford to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Bedford;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Bedford acting by the council as the Urban District Council for
that Borough (herein-after referred to as "the Corporation") require
to purchase and take the lands described in the schedule hereto for
the purposes of their water undertaking and to enable them to protect
the sources of their water supply from contamination:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order
the following provisions shall have effect that is to say:—

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto and for the
purposes aforesaid the powers of the Lands Clauses Acts with respect
to the purchase and taking of lands otherwise than by agreement or
any of them.

Art. II. This Order may be cited as the Bedford Order 1910.

The SCHEDULE above referred to.

A.D. 1910.
Bedford
Order.

Parish of SAINT PAUL in the Borough of BEDFORD in the
County of BEDFORD.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1	Garden - -	The Reverend William Philip Beckett William Despard.	George Frederick Paull.
2	Pasture - -	Ditto - - -	The Reverend William Philip Beckett William Despard.
3	Fairhill Brickworks	Ditto - - -	Ditto.
4	Ditto - -	Ditto - - -	Ditto.
5	Ditto - -	Ditto - - -	Ditto.
6	Garden - -	The Reverend William Philip Beckett.	Samuel Simants Jesse Gardiner Jabez Pell Frederick Roberts.

Given under the Seal of Office of the Local Government Board
this Sixth day of May One thousand nine hundred and ten.
(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

URBAN DISTRICT OF CAERPHILLY.

Provisional Order to enable the Urban District Council of
Caerphilly to put in force the Compulsory Clauses
of the Lands Clauses Acts.

Caerphilly
Order.

To the Urban District Council of Caerphilly ;—
And to all others whom it may concern.

WHEREAS the Urban District Council of Caerphilly (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto as a site for the deposit of house refuse :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from

38 & 39 Vict.
c. 55.

[Ch. lxxxiv.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 7) Act, 1910. 1 GEO. 5.]

A.D. 1910. and after the date of the Act of Parliament confirming this Order the
Caerphilly
Order. following provisions shall have effect that is to say:—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the *Caerphilly Order 1910.*

The SCHEDULE above referred to.

Parish of LLANFABON in the County of GLAMORGAN.

No. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees and Occupiers.
1	Rough pasture land and watercourses.	The Executors of the Will of Morgan Thomas deceased viz. William Howells Richard Davies and Winifred Thomas.	The Cardiff Steam Coal Collieries Company Limited.

Given under the Seal of Office of the Local Government Board
this Eleventh day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

RURAL DISTRICT OF EPPING.

Epping
Rural Order.

*Provisional Order to enable the Rural District Council of
Epping to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

To the Rural District Council of Epping;—

And to all others whom it may concern.

WHEREAS the Rural District Council of Epping (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the construction of works for the disposal of the sewage of part of the contributory place of Roydon and for providing access to the said lands:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

A.D. 1910.
Epping
Rural Order.
38 & 39 Vict.
c. 55.

- Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.
- Art. II. This Order may be cited as the Epping Rural Order 1910.

The SCHEDULE above referred to.

Parish of ROYDON in the County of ESSEX.

Nos. and Colours on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1 Pink.	Two acres of meadow land part of a field numbered 74 on the Ordnance Map 25-inch scale.	Spencer Calmeyer Charrington.	Osborne James Abbey.	Osborne James Abbey.
2 Red.	A right of way and passage along and over a strip of land being part of same field and part of the inclosures numbered 61 64 66 and 48 on the said map.	Ditto	Ditto	Ditto.
3 Brown.	Right of way and passage along and over roadway or lane called the Mill Road.	Ernest A. Ayling.	Messrs. Westrup and Ayling Limited.	Messrs. Westrup and Ayling Limited and Stort Navigation Licensees.
4 Red.	Right of way being part of the said inclosure numbered 74 on the said map.	Spencer Calmeyer Charrington.	Osborne James Abbey.	Osborne James Abbey.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of May One thousand nine hundred and ten.
(L.S.)
JOHN BURNS President.
H. C. MONRO Secretary.

A.D. 1910.

BOROUGH OF GUILDFORD.

*Guildford
Order.*

*Provisional Order to enable the Urban District Council for the
Borough of Guildford to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Guildford;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Guildford acting by the Council as the Urban District Council for that
Borough (herein-after referred to as "the Corporation") require to
purchase and take the lands described in the schedule hereto for the
purpose of widening opening enlarging or otherwise improving the
streets in the said Borough called Park Street Farnham Road and
North Street:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
following provisions shall have effect that is to say:—

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto subject to the
continuance of existing public rights of highway (if any) and for the
purpose aforesaid the powers of the Lands Clauses Acts with respect
to the purchase and taking of lands otherwise than by agreement or
any of them.

Art. II. This Order may be cited as the Guildford Order 1910.

The SCHEDULE above referred to.

A.D. 1910.
Guildford
Order.

Borough of GUILDFORD.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Cottage outbuildings and garden.	The Trustees of T. Smith deceased namely Joyce Botting Sarah Smith Louisa Gostling Kate Tipper.	- - -	Charles Lewis. Walter
2	Ditto - -	Ditto - -	- - -	Cowley.
3	Ditto - -	Ditto - -	- - -	William Goater.
4	Ditto - -	Ditto - -	- - -	Alice Coombes.
5	Ditto - -	Ditto - -	- - -	Bert Stevens.
6	Ditto - -	Ditto - -	- - -	John Cudmore.
7	Dwelling-house outbuildings and garden.	Ditto - -	Daniel Ede -	Daniel Ede.
8	Pathway - -	Alexander Forsythe Asher.	- - -	Alexander Forsythe Asher.
9	Ditto - -	The Trustees of William Smith deceased namely Elizabeth Kate Smith and William Stevens.	- - -	Elizabeth Kate Smith.
10	Dwelling-house outbuildings and garden.	Ditto - -	- - -	Watford Hooke.
11	Garden - -	Ditto - -	- - -	Elizabeth Kate Smith.
12	Shop dwelling-house yard and premises.	The Corporation -	Percy Jones -	William H. Nunn Norris Alexander Nunn.

Given under the Seal of Office of the Local Government Board
this Nineteenth day of May One thousand nine hundred and
ten.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

A.D. 1910.

RURAL DISTRICT OF LEEK.

*Leek Rural
Order.*

*Provisional Order to enable the Rural District Council of
Leek to put in force the Compulsory Clauses of the
Lands Clauses Acts.*

To the Rural District Council of Leek ; —

And to all others whom it may concern.

WHEREAS the Rural District Council of Leek (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the construction of works for the disposal of the sewage of the contributory place of Endon and Stanley and for providing access to the said lands :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz. :—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Leek Rural Order 1910.

The SCHEDULE above referred to.

Parish of LONGSDON in the County of STAFFORD.

Nos. on deposited Plans.	Description of Lands.	Owner or reputed Owner.	Occupier.
1	A piece of grass land numbered 651 on the 25-inch Ordnance Map Sheet VII.—16 Staffordshire (Second Edition 1899).	Joseph Booth Hulme -	George Dutton.
2	A piece of grass land numbered 651 on the said Ordnance Map.	Ditto - -	Ditto.

Given under the Seal of Office of the Local Government Board
this Twenty-seventh day of May One thousand nine hundred
and ten.

(L.S.)

JOHN BURNS President.

NOEL T. KERSHAW Assistant Secretary.

BOROUGH OF MORPETH.

A.D. 1910.

*Provisional Order to enable the Urban District Council for the
Borough of Morpeth to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

*Morpeth
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Morpeth;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Morpeth acting by the council as the Urban District Council for that
Borough (herein-after referred to as "the Corporation") require to
purchase and take the lands described in the schedule hereto for the
purpose of widening opening enlarging or otherwise improving the
street in the said Borough called Orde House Lane or Goose Hill Road :

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
following provisions shall have effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto and for the
purpose aforesaid the powers of the Lands Clauses Acts with respect
to the purchase and taking of lands otherwise than by agreement or
any of them.

Art. II. This Order may be cited as the Morpeth Order 1910.

The SCHEDULE above referred to.

Borough of MORPETH.

No. and Colour on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1 red.	A strip of land containing 760 square feet or thereabouts forming part of vacant land.	The County Council of Northumberland.	The County Council of Northumberland The Education Committee of that County Council.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

A.D. 1910.

BOROUGH OF RICHMOND (SURREY).

*Richmond
(Surrey)
Order.*

*Provisional Order to enable the Urban District Council for the
Borough of Richmond (Surrey) to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Richmond (Surrey);—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Richmond (Surrey) acting by the council as the Urban District
Council for that Borough (herein-after referred to as "the Corporation")
require to purchase and take the lands situate in the Borough and
described in the schedule hereto for the following purposes viz.:—

- (1) The lands described in Part I. of the said schedule for the
purpose of widening opening enlarging or otherwise im-
proving the street called Paradise Road:
- (2) The lands described in Part II. of the said schedule for the
purpose of widening opening enlarging or otherwise im-
proving the streets called George Street Red Lion Street
and Church Terrace:
- (3) The lands described in Part III. of the said schedule for the
purpose of widening opening enlarging or otherwise im-
proving the streets called Sheen Road and Worple Way:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
following provisions shall have effect that is to say:—

Compulsory
powers of
purchase.

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto and for the
purposes aforesaid the powers of the Lands Clauses Acts with respect

to the purchase and taking of lands otherwise than by agreement or any of them Provided that the prescribed period for the compulsory purchase of the lands numbered 1 to 19 in the schedule hereto shall for the purposes of Section 123 of the Lands Clauses Consolidation Act 1845 be one year from the date of the Act of Parliament confirming this Order.

A.D. 1910.
Richmond
(Surrey)
Order.

Art. II. Nothing in this Order affects prejudicially any right power Crownrights. privilege or exemption of the Crown.

Art. III. This Order may be cited as the Richmond (Surrey) Order Short title. 1910.

The SCHEDULE above referred to.

Borough of RICHMOND (SURREY).

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART I.				
PARADISE ROAD IMPROVEMENT.				
1	House forecourt garden and pre-mises No. 1 Eton Terrace.	Robert Kempthorne	- - -	William Charles Green.
2	House forecourt garden and pre-mises No. 2 Eton Terrace.	Ditto - -	- - -	Gordon Cooper.
3	Part of forecourt of house No. 4 Burnham Villas.	Leopold Daniel Woodin.	- - -	George Whetman.
4	Part of forecourt of house No. 3 Burnham Villas.	Ditto - -	- - -	Job Jarman.
5	Part of forecourt of house No. 2 Burnham Villas.	Florence Horner -	- - -	Charles Frederick Dafforne.
6	Part of forecourt of house No. 1 Burnham Villas.	Ditto - -	- - -	Harold Mapplebeck.

[Ch. lxxxiv.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 7) Act. 1910. 1 GEO. 5.]

A.D. 1910.

Richmond
(Surrey)
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
7	Part of forecourt of house "Burn- ham."	Gardiner Frederic Guyon Annie Maria Scrivener.	- - -	Annie Maria Scri- vener.
8	Forecourt pave- ment in front of Suffield House.	Harriett Lalande Ravenshaw.	The Admi- nistratrix of Frederick John Brewer deceased namely Ida Lavinia Bre- wer.	Unoccupied.
9	Forecourt pave- ment and part of wall on the east- ern side of fore- court and pave- ment fronting Hogarth House.	Ditto - -	The Admi- nistratrix of Frederick John Brewer deceased namely Ida Lavinia Bre- wer Charles Crombie.	Charles Crombie.
10	Part of forecourt of house No. 1 Burnham Terrace.	The Trustees under the Will of John Henry Houghton deceased namely John Pounds Houghton Jane Rebecca Hough- ton Harriet Ruddle.	- - -	James Danells.
11	Part of forecourt of house No. 2 Burnham Terrace.	Ditto - -	- - -	Edwin Thomas Catt.
12	Part of forecourt of house No. 3 Burnham Terrace.	Ditto - -	- - -	William Joseph Clark.
13	Part of garden at the rear of Car- rington Lodge.	John Pounds Houghton.	Charles Ed- ward John- son.	Charles Edward Johnson.
14	Part of garden at the rear of Streat- ham Lodge.	Ditto - -	Sarah Escombe William John Hatton.	William John Hat- ton.
15	Part of front gar- den of No. 2 Eger- ton Cottages.	Gardiner Frederic Guyon.	- - -	Unoccupied.
16	Part of front gar- den of No. 1 Eger- ton Cottages.	Ditto - -	- - -	Charles Alderson.
	Conduit below sur- face of Nos. 9 to 16.	His Majesty the King.	—	—

The Richmond Gas Company In respect of any gas mains.

The Richmond (Surrey) Electric Light and Power Company Limited In respect
of any electric lighting pipes wires and apparatus.

The Postmaster General In respect of any telegraph posts and wires and
telephone pipes wires and apparatus.

The National Telephone Company Limited In respect of any telegraph posts
and wires and telephone pipes wires and apparatus.

The Metropolitan Water Board In respect of any water mains or pipes.

[10 EDW. 7 & *Local Government Board's* [Ch. lxxxiv.]
1 GEO. 5.] *Provisional Orders Confirmation (No. 7) Act, 1910.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
--------------------------	-----------------------	---------------------------	-----------------------------	------------

A.D. 1910.
—
Richmond
(Surrey)
Order.

PART II.

GEORGE STREET RED LION STREET AND CHURCH TERRACE IMPROVEMENTS.

17	House shop and premises 1 George Street.	His Majesty the King as Lord of the Manor Thomas Isaac Leach.	- - -	Thomas Isaac Leach.
18	House shop and premises 1a George Street.	His Majesty the King as Lord of the Manor Alfred Richard Burton Elizabeth Burton.	- - -	Unoccupied.
19	House shop and premises 2 George Street.	Ditto - -	- - -	Alfred Richard Burton trading as J. and G. Pierce.
	Strip of land on the North - Eastern part of (and included in) above.	Alfred Richard Burton Elizabeth Burton.	- - -	Ditto.
20	House shop forecourt yard and premises No. 1a Ormond Road.	The Trustees of Bethlehem Chapel namely John Head John Payne and Walter Peacock.	- - -	Fred. Davis.
21	House shop forecourt and premises No. 1 Ormond Road.	Ditto - -	- - -	Maria Sain Gertrude Jones.
22	House side passage and premises Bethlehem Chapel Cottage.	Ditto - -	- - -	Robert Alexander Neat.
23	Chapel and Vestry Bethlehem Chapel Ormond Passage.	Ditto.	—	—
24	Workshops house yard and premises Church Terrace and Ormond Passage.	The Executors of Rutland Dickon Poppleton deceased namely Herbert Alexander Quinn Arthur Moody Anne Gertrude Jones.	William Forster Reynolds.	William Forster Reynolds.
25	House forecourt yard and premises Hermitage Lodge Church Terrace.	Ditto - -	Ditto -	Walter Scott.

The Richmond Gas Company In respect of any gas mains.

The Richmond (Surrey) Electric Light and Power Company Limited In respect of any electric lighting pipes wires and apparatus.

The Postmaster General In respect of any telegraph posts and wires and telephone pipes wires and apparatus.

The National Telephone Company Limited In respect of any telegraph posts and wires and telephone pipes wires and apparatus.

The Metropolitan Water Board In respect of any water mains or pipes.

[Ch. lxxxiv.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 7) Act, 1910. 1 GEO. 5.]

A.D. 1910.
Richmond
(Surrey)
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART III.				
SHEEN ROAD AND WORPLE WAY IMPROVEMENT.				
27	House shop yard and premises 3 Worple Way.	His Majesty the King as Lord of the Manor Cathe- rine Mary Rat- cliff.	- - -	George Sawyer.
28	House shop yard and premises 5 Worple Way.	Ditto - - -	- - -	Frederick King.
29	House shop yard and premises 7 Worple Way.	Ditto - - -	- - -	Richard Colley.

The Richmond Gas Company In respect of any gas mains.

The Richmond (Surrey) Electric Light and Power Company Limited In respect
of any electric lighting pipes wires and apparatus.

The Postmaster General In respect of any telegraph posts and wires and
telephone pipes wires and apparatus.

The National Telephone Company Limited In respect of any telegraph posts
and wires and telephone pipes wires and apparatus.

The Metropolitan Water Board In respect of any water mains or pipes.

Given under the Seal of Office of the Local Government Board
this Fifth day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

BOROUGH OF ROTHERHAM.

Rotherham
Order.

*Provisional Order for altering the Rotherham Gaslight Act 1855
the Rotherham and Kimberworth Local Board of Health
Act 1870 and the Rotherham Corporation Act 1904.*

To the Mayor Aldermen and Burgesses of the Borough of
Rotherham;—

To the County Council of the County of the West Riding of
Yorkshire;—

To the Rural District Council of Rotherham;—

And to all others whom it may concern.

WHEREAS the Borough of Rotherham (herein-after referred to as
“the Borough”) is an Urban Sanitary District of which the Mayor

Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Rotherham Gaslight Act 1855 as altered by the Rotherham and Kimberworth Local Board of Health Act 1870 and the Rotherham Corporation Act 1904 (all which Acts are herein-after together referred to as "the Local Acts" and each of which Acts is herein-after referred to as the Act of the year in which it was passed) are in force in the Borough;

A.D. 1910.
Rotherham
Order.
18 Vict.
c. xxxii.
33 & 34 Vict.
c. cxxxiv.
4 Edw. 7.
c. ccxxxii.

And whereas the limits of the Corporation for the supply of gas (herein-after referred to as "the gas limits") are defined by Section 29 of the Act of 1855 Section 31 of the Act of 1870 and Sections 13 and 14 of the Act of 1904 and it is expedient that the gas limits should be extended so as to include the Township of Thrybergh which is a contributory place in the Rural District of Rotherham and is subject to the jurisdiction of the Rural District Council of Rotherham (herein-after referred to as "the Rural Council");

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall have effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The gas limits shall be extended so as to include the Township of Thrybergh and such of the provisions of the Local Acts with respect to the supply of gas and otherwise with respect to gas purposes as now apply and have effect within the gas limits shall with the necessary modifications apply and have effect within the gas limits as so extended.

Extension of
gas limits.

Art. II.—(1) Subsection 12 of Section 11 of the Local Government Act 1888 (which relates to main roads) shall apply and have effect as if with the necessary modifications the subsection were herein re-enacted and in terms made applicable to every county bridge (including every road repairable with a county bridge) which is situate within the Township of Thrybergh and in relation to which anything is authorised or required to be done or is done in pursuance of this Order or of any enactment applied by or incorporated with the Local Acts.

Protection
for County
Council and
Rural Dis-
trict Council.

(2) Section 8 of the Gasworks Clauses Act 1847 as applied by or incorporated with the Local Acts shall in relation to any main road county bridge or road repairable with a county bridge in the said

[Ch. lxxxiv.] *Local Government Board's* [10 Edw. 7 &
Provisional Orders Confirmation (No. 7) Act, 1910. 1 GEO. 5.]

A.D. 1910. Township and in relation to any road in the said Township under the
Rotherham control or management of the Rural Council have effect as if the word
Order. "seven" were substituted for the word "three" in that Section.

(3) Whenever the Corporation in pursuance of this Order or of any enactment applied by or incorporated with the Local Acts shall have opened or broken up any main road in the said Township or any road in the said Township under the control and management of the Rural Council Section 12 of the Gasworks Clauses Act 1847 shall have effect as if the reinstatement and making good of the road required by that Section included the application of a sufficient layer of surface metalling of the same specification as that employed by the County Council of the West Riding of Yorkshire (herein-after referred to as "the County Council") or the Rural Council as the case may be for the particular road and also included the use of a steam roller on the places where the road has been opened and broken up until the surface thereof has been made uniform with the unbroken surface adjoining the same to the reasonable satisfaction of the Surveyor of the County Council or of the Rural Council as the case may be.

(4) If the County Council or the Rural Council at any time deem it necessary to raise sink or otherwise alter the situation of any gas pipe gas main or gasworks laid or placed by the Corporation in the said Township in pursuance of this Order or of any enactment applied by this Order in under or upon a main road or a county bridge or a road repairable with a county bridge or any road under the control and management of the Rural Council the County Council or the Rural Council as the case may be may by notice in writing require the Corporation to raise sink or otherwise alter the situation of the said pipe main or works in such manner and within such reasonable time as is specified in the notice and if the notice is not complied with the County Council or the Rural Council as the case may be may themselves make the alteration required and the reasonable expenses of or connected with any such alteration shall whenever there is sufficient ground for requiring the alteration be paid by the Corporation:

Provided that except in a case of necessity no such alteration shall be required or made as will permanently injure any such pipe main or works or prevent the gas from flowing as freely and conveniently as usual.

(5) All mains or pipes other than service pipes to be laid by the Corporation in the Township of Thrybergh in or along any road shall be so laid that the upper surface of the main or pipe shall be at a depth of not less than two feet from the surface of the road and in such position as the County Council or the Rural Council as the case may be shall by writing under the hand of their surveyor direct.

(6) If any difference arises at any time between the County Council or Rural Council as the case may be and the Corporation with respect to any matter to which this Article relates the difference shall if either Authority so require be determined by an arbitrator appointed by the Local Government Board.

A.D. 1910.

*Rotherham
Order.*

Art. III. This Order may be cited as the Rotherham Order 1910. Short title.

Given under the Seal of Office of the Local Government Board
this Eleventh day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

BOROUGH OF ROTHERHAM.

*Provisional Order to enable the Urban Sanitary Authority
for the Borough of Rotherham to put in force the
Compulsory Clauses of the Lands Clauses Acts.*

*Rotherham
Order
(2).*

To the Mayor Aldermen and Burgesses of the Borough of
Rotherham;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Rotherham acting by the Council as the Urban Sanitary Authority for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the following purposes that is to say:—

- (1) The lands described in Part I. of the said schedule for the purpose of widening opening enlarging or otherwise improving High Street:
- (2) The lands described in Part II. of the said schedule for the purpose of widening opening enlarging or otherwise improving Masbrough Street:
- (3) The lands described in Part III. of the said schedule for the purpose of widening opening enlarging or otherwise improving the streets called Meadow Hall Road and Kimberworth Road:
- (4) The lands described in Part IV. of the said schedule for the purpose of widening opening enlarging or otherwise improving the streets called Wellgate and Broom Road:

[Ch. lxxxiv.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 7) Act, 1910. 1 GEO. 5.]

A.D. 1910.
Rotherham
Order
 (2).
 38 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Rotherham Order (No. 2) 1910.

The SCHEDULE above referred to.

Parish and County Borough of ROTHERHAM.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART I.				
HIGH STREET IMPROVEMENT.				
Sheet No. 1. 1	Lock-up shop offices and storerooms over.	Hunters the Tea-men Limited.	James William Fe-noughty.	Hunters the Tea-men Limited Daniel Percy Mullins Sidney Walford Grout National Amalgamated Union of Enginemen Firemen Mechanics and Electrical Workers.
2	Passage and yard -	Hunters the Tea-men Limited the Corporation.	- - -	Hunters the Tea-men Limited the Corporation.
3	Surgery waiting room and workshops and studio over.	Archie Edwin Slack	- - -	Archie E. Slack Limited Ethel Roberts.
4	Workshop and workshop and toolroom over.	Ditto - -	- - -	Archie E. Slack Limited.
5	Outbuildings -	Ditto - -	- - -	Ditto.
	Outbuilding -	Ditto - -	- - -	Ditto.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1910. Rotherham Order (2).
Sheet No. 1. 7	Passage and yard -	Archie Edwin Slack	- - -	Archie E. Slack Limited George Ernest Turner.	
8	Office - - -	Ditto - - -	- - -	George Ernest Turner.	
9	Stable - - -	Ditto - - -	- - -	George Ernest Turner Archie E. Slack Limited.	
10	Office - - -	Ditto - - -	- - -	Andrew Merryweather Andrew George Merryweather.	
11	Lock-up shop -	Ditto - - -	- - -	Alice Turner.	
12	Public-house (Cross Daggers).	The Trustees of Robert John Bentley deceased namely William Needham Longden Champion Francis Beresford Champion and Henry Spencer Follett.	- - -	Frederick William Hunt.	
PART II.					
Sheet No. 2.	MASBROUGH STREET IMPROVEMENT.				
13	Yard and out-buildings.	Hannah Broadbent	- - -	John Wagner Elizabeth Cook John Doherty Elizabeth Cooper.	
14	Cottage - - -	Ditto - - -	- - -	John Wagner.	
15	Cottage and area -	Ditto - - -	- - -	Elizabeth Cook.	
16	Ditto - - -	Ditto - - -	- - -	John Doherty.	
17	Ditto - - -	Ditto - - -	- - -	Elizabeth Cooper.	
18	Ditto - - -	Ditto - - -	- - -	In hand.	
19	Ditto - - -	Ditto - - -	- - -	Ditto.	
20	Ditto - - -	Ditto - - -	- - -	Ditto.	
21	Ditto - - -	Ditto - - -	- - -	Ditto.	
22	Roadway - - -	William Heaton and Company Limited Humphrey Davy and Son Limited.	- - -	William Heaton and Company Limited Humphrey Davy and Son Limited.	

[Ch. lxxxiv.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 7) Act, 1910. 1 GEO. 5.]

A.D. 1910.
Rotherham
Order
 (2).

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART III.				
MEADOW HALL ROAD AND KIMBERWORTH ROAD IMPROVEMENT.				
Sheet No. 4. 32	Passage yard and outbuildings.	Joseph Lodge	- - - -	Charles Stainrod Harry Townsend.
33	Cottage - -	Ditto - -	- - - -	Charles Stainrod.
34	Ditto - -	Ditto - -	- - - -	Harry Townsend.
35	Lock-up shop -	Ditto - -	- - - -	William Charles Maycock.
PART IV.				
WELLGATE AND BROOM ROAD IMPROVEMENT.				
36	Land and half pro- posed new street.	Walter Gough	- - - -	Ernest William Ball Thomas Ernest Waite.

Given under the Seal of Office of the Local Government Board
 this Sixth day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
 WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
 OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
 E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.